

Court No. - 32

Case :- WRIT - C No. - 41770 of 2019

Petitioner :- Tanvir Hasan Khan

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Prabhakar Awasthi

**Counsel for Respondent :- C.S.C., Mukesh
Kumar Singh**

Hon'ble Shashi Kant Gupta,J.

Hon'ble Shamim Ahmed,J.

This writ petition has been filed, *inter alia*, for the following reliefs:

"(i) issue a writ, order or direction in the nature of certiorari calling for the records of the case and to quash the impugned recovery determination of amount by way of notice dated 18.07.2019, 16.08.2019 and the citation dated 18.11.20-19 issued by respondents (Annexure No.2,4,6 respectively to the writ petition)."

Heard the learned counsel for the petitioner and Mr. Mukesh Kumar Singh, learned counsel for the electricity department and perused the record.

Learned counsel for the petitioner has submitted that the respondents are taking coercive action against the petitioner without giving any opportunity of hearing and without following the provisions contained under the U.P.

Electricity Supply Code 2005.

Considering the facts and circumstances of the case and taking a lenient view in the matter, we direct the petitioner to appear on 30.12.2019 at 11.00 A.M. before the Respondent No.2, Executive Engineer, Vidyut Vitran Khand-I Madhyanchal Vidyut Vitran Nigam Limited, Badaun along with his objection and adduce his evidence, if any, in support of his contention. The Respondent No.2 thereafter, shall pass a final order by a speaking and reasoned order after considering the objections of the petitioner as well as the contention raised by the petitioner within a period of four weeks thereafter.

For a period of six weeks from today or till the disposal of the representation/objection, whichever is earlier, no coercive action shall be taken against the petitioner.

In case the petitioner is aggrieved with the final order, if any, passed against the petitioner, it will be open for the petitioner to file an appeal before the concerned authority under Section 127 of the Electricity Act, 2003 in accordance with law.

It is made clear that in case the petitioner does not appear on the said date fixed and files his objection, the impugned recovery citation shall stand revived automatically.

With the above observations, the writ petition stands disposed of.

Order Date :- 17.12.2019
MLK